

Court No. - 39

Case :- WRIT - C No. - 26357 of 2020

Petitioner :- Shafakat Husain

Respondent :- State of U.P. and Another

Counsel for Petitioner :- Shiv Shankar Kaithal

Counsel for Respondent :- C.S.C.,Baleshwar Chaturvedi

Hon'ble Naheed Ara Moonis,J.

Hon'ble Dinesh Pathak,J.

Heard Sri Shiv Shankar Kaithal, learned counsel for the petitioner, Sri B.P. Singh, Kachhawah, learned Standing counsel for the respondent no. 1 and Sri Baleshwar Chaturvedi, learned counsel for the respondent no. 2.

The present writ petition has been filed with the following relief;

1. Issue a writ, order or direction in the nature of certiorari quashing the impugned demand notice dated 25.11.2020 issued against the petitioner by the respondent no. 2/Executive Engineer, Dakshinanchal Vidyut Vitran Nigam Limited, Firozabad (Annexure No.1) to this writ petition.

2. Issue a writ, order or direction in the nature of mandamus commanding the respondent no. 3 and 4 not to harass and humiliate the petitioners in any means in pursuance of the Demand notice dated 25.11.2020.

3. Issue a writ, order or direction in the nature of mandamus commanding the respondents not to harass or compel the petitioner for peaceful living of the petitioner.

4. Issue any other writ, order or direction, which this Hon'ble Court' may deem just fit and proper in the circumstances of the case.

4. award the cost of the writ petition to the petitioner."

It is contended by the learned counsel for the petitioner that he is ready to deposit the due amount in instalments sought to be recovered from the petitioner by the respondent Corporation.

Sri Baleshwar Chaturvedi, learned counsel for the Power Corporation submits that there is a provision under Clause 6.14 of Electricity Supply Code, 2005 for payment of due amount in instalments, as such the petitioner may approach

the respondent no. 2 for ventilating his grievance.

Considering the facts and circumstances of the case but without entering into the merits of the case, we dispose of the writ petition with the liberty to the petitioner to approach the respondent no. 2 under Clause 6.14 of the Code 2005 by making a representation within two weeks, who in turn shall consider the grievance of the petitioner and pass appropriate order in accordance with law within four weeks thereafter.

In the meantime no coercive action shall be taken against the petitioner pursuant to the impugned demand notice dated 25.11.2020.

Order Date :- 18.1.2021

Shahnawaz